

The Appraisal Season Toolkit

3 documents every HRBP needs before calibration season

01 | HR Compliance Checklist

Everything that must be in place before ratings are communicated

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90-minute structured facilitation guide for cross-manager calibration

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Word-for-word scripts for the two hardest post-review conversations

HR Compliance Checklist

Performance Cycle Edition | For HR Business Partners

Manager / HR Name	Review Cycle	Team / Function	Date

Section 1 | Documentation Standards

- [] All performance ratings documented in the HR system before any communication to employees.
Verbal rating communications without written documentation are not compliant.
- [] All Rating 1 and Rating 2 employees have prior documented feedback on record.
No employee should receive a low rating without a documented prior warning. If this cannot be confirmed, escalate before communicating the rating.
- [] All PIPs initiated with prior HRBP sign-off and documented evidence.
PIPs initiated without HR review create significant legal exposure.
- [] Calibration session outcomes documented and filed.
Calibration notes are discoverable in employment proceedings. Ensure they are professional and evidence-based.
- [] All rating changes made during calibration documented with the rationale on record.

Section 2 | Fairness and Bias Checks

- [] Demographic analysis of rating distribution completed — gender, ethnicity where data available.
A pattern of lower ratings for a protected group is grounds for a discrimination claim regardless of intent.
- [] Pay equity check completed — compa-ratios reviewed by gender and ethnicity within the same level.
- [] Managers with outlier distributions (more than 70% of team at Ratings 4 or 5) flagged for calibration review.
- [] No PIP initiated within 90 days of an employee disclosing a protected characteristic.
Proximity of a PIP to a protected disclosure is the highest-risk legal scenario in performance management.
- [] Promotion decisions checked for demographic bias — pipeline diversity reviewed explicitly.

Section 3 | Communication Compliance

- [] All employees informed of their rating in person or via video call before written confirmation.
No employee should read their rating for the first time in an email.
- [] PIP employees had a verbal conversation before receiving the written PIP documentation.
- [] All increment letters signed off by HR and Finance before manager communication.
- [] Appeals process communicated to all employees as part of the review closing communication.

- ☐ All review documentation filed in employee HR records within 30 days of cycle close.

Legal Reminder

This checklist does not constitute legal advice. Jurisdiction-specific employment law requirements vary. Always consult your legal team before initiating formal performance action.

Calibration Session Agenda

90-minute structured facilitation guide | For HR Business Partners

Duration	Facilitator	Attendees	Date
90 — 120 minutes	HRBP	All line managers	

Ground Rules | State These Before Starting

- [] All ratings are confidential — nothing discussed in this room leaves this room.
- [] We debate evidence, not opinions. Every contested rating requires a specific example.
- [] No rating is final until the group has agreed.
- [] Seniority does not equal accuracy — challenge any view that lacks evidence.
- [] We will check distribution at the end — not use it to reverse-engineer ratings.

Agenda

0 — 10 min	Context Setting and Ground Rules Facilitator opens with the distribution snapshot (no names) and reviews ground rules. Sets the tone: data-first evidence review, not a consensus exercise.	HRBP
10 — 20 min	Calibration Anchor Exercise Present a fictional employee profile. Each manager rates independently — written, no discussion. Reveal the spread to make divergence visible before any real names are discussed.	HRBP
20 — 45 min	Rating 5s — Top Performers Review For each: manager presents evidence (2 min), group challenges (2 min), consensus reached. High evidentiary bar. "Strong" is not sufficient.	All managers
45 — 65 min	Rating 1s and 2s — Low Performers Review Review all low ratings. Check: is there prior documented feedback? Is an active development plan in place? Flag any cases where the low rating will be a surprise to the employee.	All managers
65 — 85 min	Middle Distribution — 3s and 4s Focus on contested cases only. All uncontested 3s and 4s confirmed without discussion.	All managers
85 — 100 min	Distribution Check and Bias Review HRBP presents updated distribution. Check for grade inflation, demographic patterns, and manager-level outliers. Agree any final adjustments.	HRBP

100 — 110 min	Action Items and Next Steps	HRBP
Document: ratings requiring further evidence, PIPs to initiate, flight risks to address. Every action needs an owner and a deadline.		
110 — 120 min	Buffer / Overflow	All
Reserved for contested cases needing additional discussion.		

Difficult Conversation Scripts

Word-for-word responses for the two hardest post-review conversations

How to use these scripts

These are not templates to read verbatim. They are calibrated responses built from real calibration evidence — the language is specific because vague responses in these two scenarios generate resentment, legal risk, or both. Adapt the words. Keep the structure.

SCENARIO 1 OF 2

The Employee Who Rated Herself Higher Than You Did

Setup

The employee rated herself a 5. You rated her a 4. She is visibly disappointed and asks you to explain the gap. Her frustration is legitimate — her performance was strong.

What NOT to say

- [] "You were very close to a 5 — let me see if I can revisit it with the committee."

Never imply the rating can be revisited unless it genuinely can. Creates false expectations and damages calibration credibility.

- [] "The calibration process involves the full leadership team. I'm not in a position to revisit it."

Technically accurate but completely unsatisfying. Hiding behind process generates resentment, not understanding.

Script A — stronger: name the specific gap

"A 4 means you exceeded expectations — which is a genuinely strong outcome. The specific gap to a 5 at your level is about proactive strategic scope: identifying opportunities before they're asked for. The pipeline attribution gap and the fact that the rebrand came from the brief rather than from you proactively are the two specific factors. What I want to do right now is map out exactly what a 5 looks like for you next cycle — so the path is completely clear."

Why it works: acknowledges strong performance, names the specific gap with evidence, and immediately pivots to a clear forward path. This is the conversation that retains people.

Script B — also strong: explain the standard

"Your results were genuinely strong and you should be proud of them. The 5 is reserved for people who also demonstrate consistent impact at the next level — strategic initiative, cross-functional influence, shaping direction rather than executing it. You're on that trajectory. Let's talk about what that looks like concretely for next year."

Validates performance, explains the standard without being dismissive, pivots constructively.

SCENARIO 2 OF 2

The PIP Conversation That Goes Legal

Setup

An employee has just been placed on a PIP following a Rating 2. No prior formal documentation exists. He comes in tense, mentions an employment lawyer, and says he is not signing anything until he understands what is going on.

What NOT to say

- [] "You're right — let's rip up the PIP for now and start fresh."

Catastrophic. Withdrawing the PIP the moment legal language appears signals that legal threats are effective.

- [] "The performance data speaks for itself. I'd recommend you review it carefully."

Factually defensible but tone-deaf. Not bringing HR in immediately is a serious process error.

- [] "I'm not in a position to discuss legal matters. Direct questions to HR."

Completely abdicated. He leaves more hostile than when he arrived.

The right script

"I understand this feels sudden and I want to take your concerns seriously. You're right that formal documentation should have started earlier — I want to acknowledge that as a process gap. That said, the PIP is not a disciplinary action — it's a structured support plan. I'd like HR to join us so everything is properly documented and you have full support. I'm not going to discuss legal implications directly — that's between you and your advisors — but I want to be clear that we want you to succeed."

Why it works: acknowledges the documentation gap without withdrawing the process. Brings HR in immediately. Makes no concessions under pressure. Firm but human.

Three Non-Negotiables in Any Legal-Adjacent Conversation

1. Bring HR in immediately.

The moment legal language appears in a performance conversation, HR must be present. Every word from that point is potentially discoverable.

2. Acknowledge process gaps honestly.

If documentation was missing, say so. Denying it and having it proven later is far more damaging than acknowledging it and demonstrating you have corrected it now.

3. Never make concessions under pressure.

Withdrawing a PIP because someone threatens legal action sets a precedent that legal threats work. The PIP stands. The support is real. Both are true simultaneously.

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